Sai Peace And Prosperity Apartment ... vs Ask Investment Manager P Ltd on 15 December, 2021

NATIONAL COMPANY LAW APPELLATE TRIBUNAL
CHENNAI BENCH
CHENNAI
COMPANY APPEAL (AT)(CH)(INS) NO.269/2021

In the matter of:

Sai Peace and Prosperity Apartment Buyers Associations — Appellant

Vs

ASK Investment Manager P Ltd & Anr — Respondent

Present: None for the Parties.

ORDER

VIRTUAL MODE 15.12.2021: There is no representation on the side of the Appellant at the time of calling of the matter. Even on earlier occasion i.e. on 29.11.2021, on behalf of the Appellant, even during second call of the matter there was no representation and the matter was directed to be listed on 15.12.2021.

In view of the fact that adequate opportunity is provided to the Appellant side to appear before this Tribunal, the same has not met with any positive response from the Appellant side. Hence, this Tribunal is left with no option but to dismiss the instant Appeal for want of diligent prosecution. The Company Appeal(AT)(CH)(Ins) No.269/2021 is accordingly dismissed. No costs.

(Justice M. Venugopal) Member (Judicial) (Mr. Kanthi Narahari) Member (Technical) Bm/manu